

25STCV27898 25STCV27898

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Case Number: 25STCV27898 Hearing Date: September 28, 2026 Dept: 729

Superior Court of California

County of Los Angeles

DEPARTMENT 729

TENTATIVE RULING

JOHN DOE,

vs.

BOARD OF

TRUSTEES OF THE CALIFORNIA STATE UNIVERSITY.

Case No.:

25STCV27898

Hearing Date: September 28, 2026

Defendant The

Board of Trustees of the California State University's demurrer to Plaintiff

John Doe's First Amended Complaint is

sustained with 20 days leave to amend as to the 2nd and

3rd causes of action and overruled as to the 1st cause of action.

Defendant The

Board of Trustees of the California State University's motion to strike the

entirety and portions of Plaintiff John Doe's First Amended Complaint is denied as moot.

Defendant The Board of Trustees of the California State University ("CSU") ("Defendant") demurs Plaintiff John Doe's ("Doe") ("Plaintiff") 1st, 2nd, and 3rd causes of action in his first amended complaint ("FAC") on the basis they fail to state facts sufficient to constitute any cause of action against Defendant.
(Notice of Demurrer, pgs. 1-2; C.C.P. §430.10(e).)

Defendant also moves to strike the entirety and portions of Plaintiff's FAC. (Notice of MTS, pgs. 1-2; C.C.P. §§436(a), (b).)

Request for Judicial Notice

Defendant's 6/3/26 request for judicial notice of (1) Ruling on Verified Petition for Writ of Mandate in Doe v. Board of Trustees of the California State University, LASC Case No. 24STCP01952 (D-RJN, Exh. A); and (2) the appellate opinion in Court of Appeal, Second District B344378 Jane Roe v. Jenna Smith (D-RJN, Exh. B), is granted, however, the Court does not take judicial notice of the truth of the matters asserted therein.

1.

Demurrer

Meet and Confer

Before filing a demurrer, the demurring party must meet and confer in person, by telephone, or by video conference with the party who filed the pleading to attempt to reach an agreement that would resolve the objections to the pleading and obviate the need for filing the demurrer. (C.C.P. §430.41(a), emphasis added.)

Defendant's counsel declares that "the parties to this litigation met and conferred . . . via telephone on June 3, 2026, but they did not reach an agreement." (Decl. of Winder ¶12.) Defendant's counsel's declaration is sufficient under C.C.P. §430.41(a). Therefore, the Court will consider Defendant's demurrer.

Procedural

Background

Plaintiff

filed his initial Complaint on June 23, 2025, against Defendant alleging three causes of action: (1) Breach of Contract; (2) Negligence; and (3) Breach of the Implied Covenant of Good Faith and Fair Dealing.

On March 4,

2026, this Court sustained Defendant's demurrer to the Complaint with 20 days leave to amend. (3/4/26 Minute Order.)

Plaintiff

filed the operative FAC on April 2, 2026, against Defendant, alleging the same three causes of action.

Defendant filed its demurrer and accompanying motion to

strike on June 3, 2026. Plaintiff filed

his oppositions on September 28, 2026.

Defendant filed its replies on September 21, 2026.

Summary of Demurrer

Defendant demurs to each cause

of action on the basis they fail to state facts sufficient to constitute causes

of action against it. (Demurrer, pgs. 5-6.)

Legal Standard

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385,

388.) A demurrer can be used only to

challenge defects that appear on the face of the pleading under attack or from

matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Insurance Co. (2004)

116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider

declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For

purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hospital

District (1992) 2 Cal.4th 962, 967.)

Failure to State a Cause of
Action

Breach of Contract
(1st COA)

“To prevail on a cause of action
for breach of contract, the plaintiff must prove (1) the contract, (2)
plaintiff’s performance of the contract or excuse for nonperformance, (3)
defendant’s breach, and (4) resulting damage to the plaintiff.” (Richman v. Hartley (2014) 224 Cal.App.4th 1182, 1186.)

Plaintiff alleges that he was
told by CSUCI administrators that if he did not sign the Settlement and Release
Agreement, Plaintiff would be terminated immediately with no evidentiary
hearing, no appeal, and no corresponding salary in lieu of three months’ notice
of termination. (FAC ¶72.)

Plaintiff alleges that the University
represented that the Settlement Agreement and General Release would fully and
finally settle any differences between the University and Plaintiff and that
the harassment investigation and Mr. Nutt’s investigation report and findings
would be kept confidential. (FAC ¶73.)

Plaintiff alleges that the University
represented that the Title IX complaint and investigation report would not be
included in Plaintiff’s personnel file.
(FAC ¶74.)

Plaintiff alleges that on May
17, 2023, Plaintiff and CSU signed the Settlement Agreement and General Release
and Plaintiff left his employment at CSUCI effective May 17, 2023, and received
the sum of \$50,400 salary less all appropriate payroll deductions and
withholdings as the corresponding salary in lieu of the required three months’
notice before the separation date. (FAC
¶75.)

Plaintiff alleges as of May
2023, all issues and differences concerning Plaintiff’s employment with CSUCI

were fully and finally resolved by the Settlement Agreement whereby CSU agreed to place Plaintiff's letter of resignation in his personnel file and agreed that Mr. Nutt's investigation report, issued without an evidentiary hearing, would be kept confidential. (FAC ¶76.)

Plaintiff alleges the Settlement Agreement was a valid written contract supported by consideration. (FAC ¶103.) Plaintiff alleges he performed all obligations required of him under the Settlement Agreement, except as excused or waived. (FAC ¶104.)

Plaintiff alleges Defendants owed contractual duties to Plaintiff under the Settlement Agreement, including duties to honor the agreement's finality, confidentiality, and personnel-file-related terms, and to refrain from disclosing, reviving, republishing, or using the settled matter in a manner inconsistent with the agreement. (FAC ¶105.)

Plaintiff alleges that in or about March 2024, Defendant, through one or more officers, employees, agents, and/or representatives, disclosed, communicated, relied upon, republished, and/or otherwise revived the settled matter. (FAC ¶85.)

Plaintiff alleges that Defendant thereby asserted, directly or indirectly, that Plaintiff had violated the CSU Nondiscrimination Policy and/or had engaged in sexual harassment, notwithstanding the Settlement Agreement's promise of finality and confidentiality. (FAC ¶86.)

Plaintiff alleges Defendant materially breached the Settlement Agreement by, among other things, disclosing or republishing the settled matter, asserting that Plaintiff had violated CSU policy and/or engaged in sexual harassment notwithstanding the agreement, repudiating the agreement's promise of final resolution, and using the settled matter in connection with later personnel decisions affecting Plaintiff. (FAC ¶106.) Plaintiff alleges Defendant's breaches were material and deprived Plaintiff of the benefits for which he bargained, including confidentiality, finality, closure, and freedom from later use of the settled matter against him. (FAC ¶107.)

Plaintiff alleges that as a direct and proximate result of Defendant's breach, Plaintiff suffered damages according to proof, including but not limited to lost compensation, lost benefits, lost employment opportunities, injury to professional reputation with economic consequences, and other consequential damages. (FAC ¶108.)

Plaintiff's opposition concedes that "the written Settlement Agreement does not contain a general confidentiality or nondisclosure provision." (Opposition, pg. 9.) Nonetheless, the FAC alleges that "Mr. Nutt's investigation report, issued without an evidentiary hearing, would be kept confidential." (FAC ¶176.) Plaintiff therefore alleges that the confidentiality of the investigation report is a material term the Settlement Agreement Defendant argues confidentiality of the report was not a term of the Settlement Agreement. Since the Settlement Agreement was not attached to the Complaint or FAC, the Court cannot make this determination. Accepting the pleadings as true, within the four corners of the FAC, Plaintiff sufficiently alleges a cause of action for breach of contract.

Accordingly, Defendant's demurrer to the 1st cause of action is overruled.

Negligence (2nd COA)

"The elements of a cause of action for negligence are well established. They are '(a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.'" (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917.)

Plaintiff alleges Defendants owed Plaintiff a duty to maintain confidentiality of various matters pursuant to the settlement agreement. (FAC ¶112.) Plaintiff alleges the foregoing duty was breached when Plaintiff did not receive the full benefit of the bargained for settlement agreement. (FAC ¶113.) Plaintiff alleges he suffered injuries as a direct result of CSU's breach, including loss of career opportunities, economic losses, emotional harm and damages, and reputational damages. (FAC ¶114.)

Government Code §815(a)

provides, “Except as otherwise provided by statute: (a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” (Gov. Code § 815(a).)

In Miklosy v. Regents of University of California (2008)

44 Cal.4th 876, the California Supreme Court confirmed that Government Code §815 effectively abolishes all common law tort claims against public entities. (Miklosy v. Regents of University of California (2008) 44 Cal.4th 876, 899 [“[O]ur own decisions confirm that section 815 abolishes common law tort liability for public entities.”].)

Here, Defendant is a government entity pursuant to Education Code §§899000, et seq., and therefore, a common law tort claim cannot be asserted against Defendant. The FAC fails to allege negligence based on a statutory duty.

Plaintiff’s opposition acknowledges that the duty he asserts is derived from a statute and not an independent tort duty of confidentiality; the FAC does not currently asserted this statutory duty, namely, the Information Practices Act of 1977. (Opposition Demurrer, pg. 15.)

Accordingly, Defendant’s demurrer to the 2nd cause of action is sustained with 20 days leave to amend.

Breach of the Implied Covenant of Good Faith and Fair Dealing (3rd COA)

“The covenant of good faith and fair dealing, implied by law in every contract, exists merely to prevent one contracting party from unfairly frustrating the other party’s right to receive the benefits of the agreement actually made. The covenant thus cannot ‘be endowed with an existence independent of its contractual underpinnings.’ It cannot impose substantive duties or limits on the contracting parties beyond those incorporated in the specific terms of their agreement.” (Guz v. Bechtel National, Inc. (2000) 24 Cal.4th 317, 349-350, internal citations omitted.)

Plaintiff alleges that in or

about March 2024, Defendant, through one or more officers, employees, agents, and/or representatives, disclosed, communicated, relied upon, republished, and/or otherwise revived the settled matter.
(FAC ¶85.)

Plaintiff alleges Defendant thereby asserted, directly or indirectly, that Plaintiff had violated the CSU Nondiscrimination Policy and/or had engaged in sexual harassment, notwithstanding the Settlement Agreement's promise of finality and confidentiality.
(FAC ¶86.)

Plaintiff alleges on information and belief that Defendant communicated such assertions and/or relied on such assertions in connection with later CSU employment decisions affecting Plaintiff. (FAC ¶87.)

Plaintiff alleges that under the Settlement Agreement, Plaintiff had a right to receive the benefits of the parties' bargain, including finality, confidentiality, closure, and freedom from later revival or use of the settled matter in a manner that would impair his professional opportunities. (FAC ¶118.)

Plaintiff alleges that Defendant breached the implied covenant of good faith and fair dealing by acting in a manner that unfairly interfered with Plaintiff's right to receive the benefits of the Settlement Agreement, including by reviving, disclosing, republishing, relying upon, and/or using the settled matter in later employment-related decisions and communications. (FAC ¶119.)

Plaintiff alleges that Defendant's conduct was contrary to the purposes of the Settlement Agreement and deprived Plaintiff of the agreement's intended benefits even apart from, or in addition to, the express breaches alleged herein.
(FAC ¶120.)

Plaintiff alleges that as a direct and proximate result of Defendant's breach of the implied covenant, Plaintiff suffered damages according to proof, including economic and consequential damages. (FAC ¶121.)

Plaintiff fails to allege a

cause of action for breach of the covenant of good faith and fair dealing that

is additional to the claims asserted in the breach of contract cause of action. (Careau & Co. v. Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 1371,

1395 ["If the allegations do not go beyond the statement of a mere contract

breach and, relying on the same alleged acts, simply seek the same damages or

other relief already claimed in a companion contract cause of action, they may

be disregarded as superfluous as no additional claim is actually stated. Thus,

absent those limited cases where a breach of a consensual contract term is not

claimed or alleged, the only justification for asserting a separate cause of

action for breach of the implied covenant is to obtain a tort recovery."].) Because Plaintiff's claim is based on the

same alleged violation of contract terms, namely that "Mr. Nutt's investigation

report, issued without an evidentiary hearing, would be kept confidential," the

claim is duplicative. (FAC ¶176.)

Accordingly, Defendant's

demurrer to the 3rd cause of action is sustained with 20 days leave to amend.

Conclusion

Defendant's demurrer to

Plaintiffs' FAC is sustained with 20 days leave to amend as to the 2nd and 3rd causes of action and

overruled as to the 1st cause of action.

Moving Party to give notice.

2.

Motion to Strike

In light of the Court's ruling on the demurrer, Defendant's motion

to strike is denied as moot.

Conclusion

Defendant's motion to strike is denied as moot.

Moving Party to give notice.

Dated: September _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court